

24VECV06253 24VECV06253

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-24

Motion: MOTION FOR SUMMARY ADJUDICATION

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Case Number: 24VECV06253 Hearing Date: September 24, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

MARIA

TINOCO-JUAREZ, an individual, et al.,

Plaintiffs,

vs.

FORD MOTOR COMPANY, a Delaware corporation, et al.

Defendants.

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CASE

NO: 24VECV06253

[TENTATIVE]

ORDER RE: MOTION FOR SUMMARY ADJUDICATION

Dept.

I

HEARING

DATE: September 14, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: December 16, 2024

TRIAL

DATE: November 30, 2026

I.

BACKGROUND

This is a lemon law action arising out of Plaintiffs Maria Tinoco-Juarez (“Juarez”) and Angel Sanchez-Vazquez’s (“Vazquez”) purchase of 2021 Ford F-150, VIN: 1FTFW1E81MFC89048 (the “Subject Vehicle”) manufactured and/or distributed by Defendant Ford Motor Company (“FMC”) and allegedly repaired by Defendant Knight Sunrise Hollywood LLC d/b/a Sunrise Ford of North Hollywood (“Sunrise Ford”).

On December 16, 2024, Plaintiffs filed a Complaint against FMC, Sunrise Ford, and DOES 1 through 10 (collectively, “Defendants”), asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of Song-Beverly Act – Section 1793.2; (4) Fraudulent Inducement – Concealment; and (5) Negligent Repair.

On February 20, 2025, FMC filed a Demurrer to the Complaint. The matter was fully briefed and came for hearing on March 25, 2025; the demurrer was sustained with 20 days leave to amend as to the fourth cause of action for Fraudulent Inducement – Concealment.

On April 14, 2025, Plaintiffs filed the operative First Amended Complaint (“FAC”) against Defendants.

On May 15, 2025, Sunrise Ford filed its Answer to the FAC.

On June 13, 2025, FMC filed a Demurrer to the FAC. The matter was fully briefed and came for hearing on August 27, 2025 after being taken under submission; the demurrer was sustained without leave to amend as to the fourth cause of action.

On April 9, 2026, FMC filed its Answer to the FAC.

On June 11, 2026, FMC filed the instant Motion for Summary Adjudication. On August 25, 2026, Plaintiffs filed an Opposition. On September 3, 2026, FMC filed a Reply.

II.

LEGAL

STANDARD

“A

motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) “A defendant making the motion for summary adjudication has the initial burden of showing that the cause of action lacks merit because one or more elements of the cause of action cannot be established or there is a complete defense to that cause of action. [Citations.] If the defendant fails to make this initial showing, it is unnecessary to examine the plaintiff’s opposing evidence and the motion must be denied. However, if the moving papers establish a prima facie showing that justifies a judgment in the defendant’s favor, the burden then shifts to the plaintiff to make a prima facie showing of the existence of a triable material factual issue.” (Rehmani v. Superior Court (2012) 204 Cal.App.4th 945, 950.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id.)

“[T]here is no obligation on the opposing party . . . to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element . . . necessary to sustain a judgment in his favor.” (Consumer Cause, Inc. v. SmileCare (2001) 91 Cal.App.4th 454, 468 (quoting Huynh v. Ingersoll-Rand (1993) 16 Cal.App.4th 825, 830-31 (internal quotation marks omitted)) (alteration in original).)

III.

DISCUSSION

Timeliness

Code of

Civil Procedure Section 437c, subdivision (a)(2) provides that “[n]otice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing.” (Code Civ. Proc., § 437c, subd. (a)(2); see Cuff v. Grossmont Union High School Dist. (2013) 221 Cal.App.4th 582, 596.) If the notice is served by mail to an address within the State of California, the 81-day period is increased by 5 days. (See Code Civ. Proc., § 437c, subd. (a)(2).)

“The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” (Code Civ. Proc., § 437c, subd. (a)(3).)

In opposition, Plaintiffs argue that the present motion for summary adjudication (hereinafter, “MSA”) should be denied on the grounds that it was not timely filed. (Opp. at) It is true that the initial trial date was set for October 5, 2026. (Min. Order, 10/10/25.) As such, thirty (30) calendar days before trial would have been September 8, 2026, making the date for service and filing of the MSA due by June 22, 2026 – at least 81 calendar days of the noticed hearing date, i.e., September 8, 2026. Although the MSA was filed on June 11, 2026, it was noticed for September 14, 2026, which more than the thirty (30) calendar day requirement. Nevertheless, this issue is moot since the Court on its own motion continued the trial date to November 30, 2026. (Min. Order, 6/24/26.)

Therefore,
the Court will rule on the merits of the MSA.

Evidentiary
Objections

Plaintiffs
object to portions of the declaration of Sheerin S. Tehrani in support of FMC’s summary adjudication motion on the grounds of hearsay, lack of foundation, and lack of personal knowledge. (See Plf. Evidentiary Objections, 8/25/26.) Objections based on lack of foundation, hearsay, and lack of personal knowledge should be overruled unless there is a reason to believe that a witness, including an expert witness, would not be able to lay a foundation and authenticate these facts at trial. (See *Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 947-948.)

Accordingly,
Plaintiffs’ evidentiary objections are OVERRULED.

Summary
Adjudication

FMC

moves for summary adjudication on the second cause of action for Breach of Implied Warranty and fifth cause of action for Negligent Repair on the grounds that: (1) there is no evidence of any defect manifesting within the first year of ownership that rendered the vehicle unmerchantable or unsuitable for its intended purpose; and (2) the claim for negligent repair is barred by the economic loss rule.

Scope
of Pleadings

The

function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings. (FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-382.) Since the pleadings delimit the issues, summary judgment cannot be granted or denied on grounds not raised by the pleadings. (Bostrom v. County of San Bernardino (1995) 35 Cal.App.4th 1654, 1663.)

The FAC

alleges, inter alia, that on October 29, 2021, Plaintiffs purchased the Subject Vehicle for \$81,596.36 from Galpin Ford, a FMC-authorized dealership. (Compl., ¶¶9, 59.) The sale of the Subject Vehicle was accompanied by an implied warranty that the Subject Vehicle was merchantable pursuant to Civil Code Section 1792. (Id., ¶118.) The Subject Vehicle was delivered to Plaintiffs with latent defects, thus not fit for the ordinary purpose for which goods are used. (Id., ¶¶119-122.) Specifically, the Subject Vehicle was equipped with a 10R80 transmission. (Id., ¶¶60.) Plaintiffs presented the Subject Vehicle to a FMC-authorized dealerships, Galpin Ford and/or Sunrise Ford for repair after experiencing drivability concerns stemming from the 10R80 transmission on or around December 4, 2023; June 18, 2024; and September 5, 2024. (Id., ¶¶65-67, 34.) The service technicians at the dealerships after each repair visit represented that the Subject Vehicle had been repaired and was safe to drive. (Ibid.) Sunrise Ford owed a duty to Plaintiffs to use ordinary care and skill in storage, preparation, and repair of the Subject Vehicle in accordance with industry standards. (Id., ¶35.) Sunrise breached its duty by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards. (Id., ¶36.) Sunrise

Ford's breach was the proximate cause of Plaintiff's damages. (Id., ¶37.)

Breach of the Implied Warranty (2nd COA)

Pursuant to Civil Code Section 1792, “[u]nless disclaimed in the manner prescribed by this chapter, every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable. The retail seller shall have a right of indemnity against the manufacturer in the amount of any liability under this section.” (Civ. Code, § 1792.) “[U]nder the implied warranty of merchantability and the Song-Beverly Act: products must ‘(1) pass without objection in the trade under the contract description; (2) [be] fit for the ordinary purposes for which those goods are used; (3) [be] adequately contained, packaged, and labeled; and (4) conform to the promises or affirmation of fact made on the container or label.’ ” (Gagetta v. Walmart, Inc. (N.D. Cal. 2022) 646 F.Supp.3d 1164, 1178.)

“Such fitness is shown if the product ‘is “in safe condition and substantially free of defects”....’ [Citation.]” (Brand v. Hyundai Motor America (2014) 226 Cal.App.4th 1538, 1546.) “Thus, a new car need not ‘be perfect in every detail’; rather, its implied merchantability ‘requires only that a vehicle be reasonably suited for ordinary use.’ ” (Id.) Essentially, “a merchantable vehicle under the statute requires more than the mere capability of ‘just getting from point “A” to point “B.” ’ ” (Id.)

1.

Defendant's Initial Burden

Here, FMC present evidence showing, inter alia, that Plaintiffs presented the Subject Vehicle to Galpin Ford for routine warranty maintenance, wherein the dealership performed an oil and filter change, tire rotation, tire pressure check, and multipoint inspection on July 15, 2022; December 10, 2022; May 13, 2023; and August 30, 2024. (Def. Sep. Stmt. of Fact (“DSSF”) nos. 2, 4-5, 9.) On August 3, 2022, Plaintiffs presented the Subject Vehicle to Galpin Ford for recall and field service work, wherein the dealership performed module reprogramming, software updates and recall repairs. (DSSF no. 3.) Basically, the repair records do not reflect that Plaintiffs expressed concerns about harsh shifting, transmission malfunction,

rough idle, shaking, loss of power, or drivability during the first year of purchase. (DSSF no. 11.)

Specifically,

Plaintiffs presented the Subject Vehicle to Galpin Ford for concerns that the sync display would shut off while driving, the towing system reported a fault, and the vehicle exhibited a rough idle on December 4, 2023. (DSSF no. 6.) The dealership performed module reprogramming, software updates, and diagnostic and repairs procedures including parts replacement to address these concerns. (Id.)

Plaintiffs presented the Subject Vehicle to Galpin Ford for concerns of irregular idle and lack of power on May 14, 2024 but Plaintiffs removed the Subject Vehicle before repairs were completed. (DSSF no. 7.) Plaintiffs presented the Subject Vehicle to Galpin Ford for concerns that the Subject Vehicle shook while driving and exhibited a rough idle on June 18, 2024, which the dealership verified and performed diagnostic testing, software updates, and reprogramming. (DSSF no. 8.) Finally, Plaintiffs presented the Subject Vehicle to Sunrise Ford for concerns that the Subject Vehicle shook while driving/during operation and displayed system fault messages on September 5, 2024. (DSSF no. 10.)

In light of the evidence presented by FMC, a reasonable jury could find that the repair records for the Subject Vehicle does reflect consumer complaints about latent defects during the first year of purchase, which rendered the Subject Vehicle unmerchantable. Therefore, FMC has to meet its initial burden that no triable issue of material fact exists as to whether the Subject Vehicle was unmerchantable under Civil Code Section 1792.

2.

Plaintiffs' Burden

Plaintiffs submits evidence showing, inter alia, that Vazquez voiced concerns about the Subject Vehicle that were not listed on the repair order on July 15, 2022. (Plf. Addtl. Stmt of Fact ("PASF") no. 12.) Furthermore, Vazquez testified that he was informed that the dealership could only address two to three issues at a time. (Id.) Vazquez also experienced shaking while driving the Subject vehicle about four to six months after Plaintiffs' purchased the Subject Vehicle. (PASF no. 1.) Plaintiffs told the dealership about the shaking issue multiple times after it began and were told the dealership does not know why the Subject Vehicle shakes. (PASF no. 2.) In fact, Juarez testified that on December 10, 2022, she personally brought the Subject

Vehicle to Galpin Ford and reported the shaking condition. (PASF nos. 2-4.)
Despite not feeling safe in the Subject Vehicle, Plaintiffs continued to use it because they had no alternative means of transportation. (PASF nos. 6-10.)

Reviewing the evidence submitted by Plaintiffs, a reasonable jury could find that Plaintiffs complained of a latent defects plaguing the Subject Vehicle within the first year of purchase that were not written down by the dealership.

Thus, the Court finds that Plaintiffs have presented substantial evidence showing a triable issue of material facts exists as to whether the Subject Vehicle was unmerchantable under Civil Code Section 1792.

Negligent Repair (5th
COA)

“To state a cause of action for negligence, a plaintiff must allege (1) the defendant owed the plaintiff a duty of care, (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff’s damages or injuries.” (Lueras v. BAC Home Loans Servicing, LP (2013) 221 Cal.App.4th 49, 62.) Generally, “[e]ven in actions for negligence, a manufacturer’s liability is limited to damages for physical injuries and there is no recovery for economic loss alone.” (Seely v. White Motor Co. (1965) 63 Cal.2d 9, 18; see also North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 780 [“in actions arising from the sale or purchase of a defective product, plaintiffs seeking economic losses must be able to demonstrate that either physical damage to property (other than the defective product itself) or personal injury accompanied such losses; if they cannot, then they would be precluded from any tort recovery in strict liability or negligence. However, such authorities would seem to have little or no application when the commercial relationship of the parties does not involve the sale of goods or products, nor the rules developed under the law merchant and the Uniform Commercial Code, but rather relates only to the performance of services”].)

Essentially, under the economic loss rule, “[w]here a purchaser’s expectations in a sale are frustrated because the product he bought is not working properly, his remedy is said to be in contract alone, for he has suffered only ‘economic’ losses.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 988 (Robinson), quotation marks

omitted.)

1.

Defendant's Initial Burden

Here, FMC present evidence showing, *inter alia*, that Plaintiffs presented the Subject Vehicle to Sunrise Ford for repairs on September 5, 2024. (DSSF nos. 14, 18.) Sunrise Ford performed the repair services pursuant to contract. (DSSF nos. 15, 19.) Plaintiffs only allege economic losses relating to the Subject Vehicle. (DSSF nos. 13, 17.) Plaintiffs do not claim that they did not sustain any personal injury arising from the Subject Vehicle. (DSSF no. 21.)

In light of the evidence presented by FMC, a reasonable jury could find that Plaintiffs' suffered no physical damage or personal injury that arose as a result of Sunrise Ford's repair attempt on the Subject Vehicle. Therefore, FMC has to meet its initial burden that no triable issue of material fact exists as to whether the Negligent Repair claim is barred by the economic loss rule. The burden now shifts to Plaintiffs to raise a triable issue of material fact.

2.

Plaintiffs' Burden

Plaintiffs cite to Paragraphs 67 and 33-37 of the FAC for support of their Negligent Repair claim. (Plf. Sep. Stmt of Facts ("PSSF") nos. 13, 15, 17-19, 21.) However, the cited allegations do not show that Plaintiffs suffered any physical injury or property damage outside of the alleged latent defects. (*Ibid.*) Moreover, it is undisputed that Sunrise Ford's repair services were performed pursuant to contract. (DSSF nos. 15, 19.) Plaintiffs assertion that they were exposed to risk of personal injury due to the unresolved claimed defects does not absolve their burden to provide evidence showing that they suffered property damage and/or physical injury as a result of the alleged repairs made by Sunrise Ford to sustain a claim for Negligent Repair. There is no legal authority cited by Plaintiffs that allows for such exposure to risk of personal injury to shield a Negligent Repair claim from being barred by the economic loss rule. Notably, Plaintiffs' reliance on *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979 is misplaced because the court found that the economic loss rule did not bar fraud and intentional misrepresentations claims since affirmative misrepresentations constitute a tort independent of a

breach of contract. (Robinson Helicopter Co., Inc. v. Dana Corp. (2004)
34 Cal.4th 979, 991.) There is no such claim alleged in this present lawsuit,
thus falls outside the scope of the pleadings.

Reviewing the lack of evidence submitted by Plaintiffs, a
reasonable jury could not find that Plaintiffs suffered property damage and/or
physical injury as a result of the alleged repairs made by Sunrise Ford.

Thus, the Court finds that Plaintiffs failed to present substantial
evidence showing a triable issue of material facts exists as to whether the
Negligent Repair claim is barred by the economic loss rule.

IV.

CONCLUSION

Based on the foregoing, Defendant
Ford Motor Company's Motion for Summary Adjudication is DENIED IN PART as to
the second cause of action and GRANTED IN PART as to the fifth cause of action.

Defendant Ford Motor Company to give notice.

Dated: September
14, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court